

OFFICE / WAREHOUSE SPACE LEASE

By and between

**ForeFront Collier Venture LLC
a Florida limited liability company,
as Landlord**

And

Clements Pest Control Southwest, LLC

AS TENANT

DATED: JUNE ²⁰____, 2023

OFFICE / WAREHOUSE LEASE

This Lease (this “Lease”) is dated the 20th day of June 2023 (“Effective Date”), between ForeFront Collier Venture LLC, a Florida limited liability company (“Landlord”), and Clements Pest Control Southwest, LLC (“Tenant”).

RECITALS

A. Landlord owns the buildings located at 1035 Collier Center Way, Naples, Florida (the “Building”).

B. Landlord agrees to lease space (the “Premises”) in the Building to Tenant, and Tenant agrees to lease the Premises from the Landlord, all on the terms described below.

NOW, THEREFORE, in consideration of the above Recitals, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Landlord and Tenant agree as follows:

SCHEDULE OF TERMS

Article 1 Basic Lease Provisions.

The basic provisions of this Lease contained in this Schedule of Terms (“Schedule”) are as follows:

1.1 Premises. The Premises (the “Premises”) consists of approximately 2,450 rentable square feet of office/warehouse space known as 1035 Collier Center Way, Unit 6, Naples, Florida.

1.2 Tenant’s Percentage Share.

(a) Tenant’s Percentage Share of Operating Expenses (as defined in Article 3 below): 10.00%

(b) Tenant’s Percentage Share of Real Estate Taxes (as defined in Article 3 below): 10.00%

1.3 Occupancy Date / Rent Commencement Date.

The Occupancy Date (the “Occupancy Date”) shall be July 1, 2023, on which the Landlord will deliver possession of the Premises to Tenant in an “As-Is, Where-Is” condition.

Rent Commencement Date. The Rent Commencement Date for all rent payable hereunder for the Premises shall be July 1, 2023 (the “Rent Commencement Date”).

1.4 Lease Term. The Lease Term (the “Lease Term”) shall be Five (5) years beginning on the Rent Commencement Date.

1.5 Base Rent. The monthly installments of Base Rent shall be payable as follows:

Lease Term	Rentable Square Feet	Price/Square Feet	Annualized Rent	Monthly Rent
7/1/23 – 7/30/23	2,450	\$19.00	N/A	\$1,282.17
8/1/23 – 6/30/24	2,450	\$19.00	\$46,550.04	\$3,879.17
7/1/24 – 6/30/25	2,450	\$19.57	\$47,946.48	\$3,995.54
7/1/25 – 6/30/26	2,450	\$20.16	\$49,392.00	\$4,116.00
7/1/26 – 6/30/27	2,450	\$20.76	\$50,862.00	\$4,238.50
7/1/27 – 6/30/28	2,450	\$21.38	\$52,380.96	\$4,365.08

ALL FIGURES WITHIN 1.6 AND ARTICLE 3 ARE SUBJECT TO THE ADDITION OF FLORIDA RENTAL TAX PLUS ANY APPLICABLE SURTAX. UPON LEASE EXECUTION THE CURRENT 2023 TAX RATE IS 5.5% FOR STATE AND 1.0% FOR COUNTY FOR TOTAL OF 6.5%. THIS IS SUBJECT TO CHANGE BUT FOLLOWING IS AN EXAMPLE FOR AUGUST 2023 MONTH RENT:

INITIAL BASE RENT (\$3,879.17) + OPR/RE TAX DEPOSIT (\$1,122.92) + TAX (\$325.13) = \$5,327.22

1.6 Security Deposit / Payment upon Lease Execution. The security deposit for the Premises shall be \$5,327.22 subject to the provisions of Section 21.11 below. In addition, July 2023 rent shall be paid as follows: Bare Rent (\$1,282.17) + OPR/RE TAX DEP (\$1,122.92) + TAX (\$156.33) = \$2,561.42. TOTAL upon Lease Execution \$5,327.22 (Security Deposit) plus \$2,561.42 (June Rent) = \$7,888.64

1.7 Permitted Use. Office and warehouse for pest control company and for no other purpose without Landlord's consent, not to be unreasonably withheld.

1.8 Personal Guarantor. N/A

1.9 Base Year. N/A

1.10 Notices for Tenant. Notices shall be sent/delivered to:

Attn: Christopher Slade, Clements Pest Control Services, Inc. 4036 43rd Ave., Vero Beach, FL 32960.

Article 2 Rent

2.11 Base Rent. Tenant shall pay to Landlord as rent for the use and occupancy of the Premises, at the times and in the manner provided below, Base Rent in the amount specified in Section 1.6 above. Base Rent is payable in advance beginning on the Rent Commencement Date, as applicable, on the first

day of each successive calendar month during the Lease Term without demand, setoff or deduction. If the first or last month of this Lease is not a full month, Base Rent will be prorated in proportion to the number of days the Premises are occupied in such month. All payments to the Landlord will be made to **ForeFront Collier Venture LLC, c/o Forefront Properties, LLC, 1 s450 Summit Avenue, Suite 150, Oakbrook Terrace, Illinois 60181** or to any other address designated by Landlord in writing. The first month's payment of Base Rent shall be paid at the time of execution of this Lease by Tenant.

2.12 Interest and Late Charges. If Tenant fails to pay any Base Rent or any other amount when due and payable under this Lease, the unpaid amount shall bear interest from the due date to the date of payment at the lesser rate of (a) 18% *per annum* and (b) the highest rate permitted by law. In addition, a \$50.00 charge shall be imposed on any check that is returned for insufficient funds.

Article 3

Operating Expenses Rent and Real Estate Taxes Rent

3.1 Operating Expenses Rent. Commencing on the Rent Commencement Date, in addition to Base Rent, Tenant shall pay Tenant's Percentage Share of Operating Expenses, as defined in the Schedule ("Operating Expense Rent") paid or incurred by Landlord in each calendar year of the Lease Term for Operating Expenses as set forth in the Schedule.

(a) Operating Expenses Defined. "Operating Expenses" means all costs of operating, servicing, repairing and maintaining the Building (as hereinafter defined), but does not include any costs which are paid directly by, or which are incurred for the sole benefit of, any tenant in the Building. The Landlord will calculate Operating Expenses in accordance with generally accepted accounting principles applied on a consistent basis ("GAAP").

- (i) (i) Operating Expenses include, but are not limited to:
 - (A) utility charges, including water, sewer, heating, air conditioning, ventilating and all other utility charges (other than charges for utilities separately metered and paid directly by the Tenant or by other tenants);
 - (B) costs of janitorial and maintenance services, which include cleaning of Common Areas (as defined below), exterior window cleaning, fire detection and security services, gardening and landscape maintenance, , garbage and other refuse removal, pest control, painting (other than painting of any tenant space), facade maintenance, Common Area lighting, roof repairs, maintenance of all pipes, and repainting of parking lot and sidewalks. No credit shall be given to Tenant for janitorial services engaged by Tenant for Premises cleaning (it is understood and agreed that Tenant is solely responsible for janitorial services for its Premises);
 - (C) insurance premiums for public liability, property damage, flood and all other types of insurance that Landlord maintains for the Building, including any amounts that would be paid by Landlord as premiums for usual and customary self-insurance risks for similarly situated buildings, including insurance deductibles;
 - (D) a property management fee;

- (E) the costs (amortized together with a reasonable finance charge in accordance with GAAP) of any capital improvements which Landlord makes to the Building if such improvements are intended primarily (1) for the purpose of reducing Operating Expenses; or (2) to comply with any governmental law or regulation that was not in force at the time this Lease began;
- (F) maintenance, repair and replacement of the parking lot serving the Building, including, without limitation, sealing, striping and patchwork; provided, however, any costs to replace or grind-down the parking lot serving the Building shall be amortized over a period of five (5) years;
- (G) all other reasonable costs customarily included in the operation of comparable office /warehouse buildings in the surrounding area; and

(ii) Operating Expenses do not include, and therefore Landlord is not entitled to be reimbursed under this Lease for, the following items:

- (A) depreciation on the Building or any Common Areas;
- (B) costs of planning, designing, improving or altering any tenant's space or any cash or consideration paid for by Landlord with respect to or in lieu of any tenant work;
- (C) costs for which Landlord is reimbursed by insurance or otherwise, but only to the extent of such other reimbursement, such as, for example, expenses reimbursed by another tenant under the provisions of such other tenant's lease;
- (D) costs in connection with services or benefits that are not provided to Tenant, but are provided to another tenant in the Building; and
- (E) expenditures that are considered to be capital expenditures under GAAP, other than those listed in clause 3.1(a)(i)(E) above.

3.2 Real Estate Taxes Rent. Commencing on the Rent Commencement Date, in addition to Base Rent, Tenant shall pay Tenant's Percentage Share of Real Estate Taxes, as specified in the Schedule of the Real Estate Taxes ("Real Estate Taxes Rent") paid for any given year by Landlord for Real Estate Taxes as set forth in the Schedule of Terms.

(a) Real Estate Taxes Defined. "Real Estate Taxes" means all property taxes and assessments of every type, whether general or special, and sewer rents, rates and charges, and any taxes enacted in place of those taxes, which are at any time levied or assessed against any or all of the Building or the Building, or the furniture, fixtures, machinery, equipment and systems located in the Building (except that personal property taxes for personal property located in any premises leased to another tenant shall not be included). These taxes are sometimes referred to in this Lease as "Taxes." Taxes also shall include all amounts expended by Landlord for legal fees and other expenses incurred in obtaining a reduction in Taxes, so long as such fees are less than the amount of the reduction received by Tenant. Taxes shall not include any income, franchise, gift or inheritance taxes that the Landlord must pay in connection with the Building.

3.3 Payment. During December of each calendar year, or as soon after that date as practicable, Landlord shall give Tenant written notice of its estimate of Operating Expenses Rent and Real Estate Taxes Rent for the following calendar year. On or before the first day of each month during the following calendar year, Tenant shall pay to Landlord 1/12th of such estimated amounts, *provided that* if such notice is not given in December, Tenant shall continue to pay on the basis of the prior year's estimate until the month after such notice is given. The initial estimate shall be based on \$5.50 per rentable square foot (\$1,122.92) per month.

3.4 Statement. Within 90 days after the later of the end of each calendar year or receipt of the Real Estate tax bill for the preceding year or as soon after that date as practicable, Landlord shall deliver to Tenant a detailed line-item statement of amounts of Operating Expenses Rent and Real Estate Taxes Rent payable for that calendar year. If the statement shows that Tenant owes more than the estimated payments that Tenant made for the calendar year, Tenant shall pay the deficiency to Landlord within 30 days after delivery of the statement. If the total of the estimated monthly installments paid by Tenant during any calendar year exceeds the actual amounts due from Tenant for the calendar year and if Tenant is not in default, the excess shall, at Landlord's option, either be credited against payments next due from Tenant or refunded by Landlord to Tenant. Any overpayment by Tenant at the end of the Lease Term shall be reimbursed to Tenant within 60 days following the end of the Lease Term.

3.5 Proration. If this Lease terminates on a day other than the last day of a calendar year, the amount of Operating Expenses Rent and Real Estate Taxes Rent payable by Tenant applicable to that calendar year will be prorated to reflect the number of days from the commencement of the year to and the date of termination.

3.6 Change in Tenant's Percentage Share. "Tenant's Percentage Share" means a fraction, the numerator of which is the Rentable Area of the Premises and the denominator of which is the Rentable Area of the Building, determined by measuring all the areas located within the exterior walls of the Building. As of the date of this Lease, Tenant's Percentage Share is as described in the Schedule. Landlord shall recalculate tenant's Percentage Share if the Rentable Area of the Premises or the Building changes for any reason, such recalculation to reflect the rentable area of the Premises expressed as a percentage of the Rentable Area of the Building. Landlord shall notify Tenant in writing of any recalculation.

Article 4 Use of Premises

4.11 Use Restrictions. Tenant may not use any portion of the Premises for any use which is unlawful, or which interferes with the use of other premises by other tenants of the Building or for purposes other than those specified in Section 1.7. Tenant may not use the Premises for any purpose that will increase the existing rate of insurance on the Building, or cause cancellation of insurance policies covering the Building.

4.12 Access. Tenant shall have access to the Building and the Premises seven days per week, 24 hours per day. Access to the Building other than during normal business hours will be subject to such rules and regulations, as Landlord reasonably requires, including without limitation the rules and regulations attached as Exhibit A.

4.13 Miscellaneous Restrictions. Tenant shall not use the Premises for any offensive, noisy or dangerous trade, business, manufacture or occupation or interfere with the business of any other tenant in the Building. Tenant shall not cause, permit or suffer any waste or damage, disfigurement or injury to the Premises, or the fixtures or equipment in the Premises or the Common Areas. Tenant shall not obstruct the sidewalks or other Common Areas of the Building or use them for business operations or advertising.

Tenant shall not use the Premises for any purpose that would emit any offensive odor, create unreasonable elevator loads, cause structural loads to be exceeded or adversely affect the mechanical, electrical, plumbing or other base building systems.

Article 5
Landlord's Reservation of Rights

Landlord may (a) increase, reduce or change the number, dimensions or locations of the walks, parking, if any, and other Common Areas and other improvements located in or about the Building in any manner that Landlord in its sole discretion deems proper, so long as Landlord does not materially and adversely affect Tenant's use of or access to the Premises; (b) make alterations and additions to the Building, and build additional stories on the Building and add additional land, buildings and other structures and improvements in the vicinity of the Building; (c) install, maintain, use, repair and replace pipes, ducts, conduits and wires leading through the Premises and serving other parts of the Building in a manner that will not materially interfere with Tenant's use of the Premises; (d) change the Building's name without notice, and change the Building's street address upon 90 days prior notice; (e) grant to any person or entity the exclusive right to conduct any business or render any service in or to the Building; (f) retain at all times master keys or passkeys to the Premises, and place such signs, notices or displays as Landlord reasonably deems necessary or desirable on the roof and exterior of the Building; (g) make reasonable rules and regulations applicable to all tenants concerning the Common Areas; (h) close temporarily any of the Common Areas for maintenance purposes; and (i) designate other lands outside the exterior boundaries of the Building to become part of the Common Areas, provided they are utilized in connection with the Building.

Article 6
Parking

Tenant shall have rights to up to four (4) vehicles outside on a non-reserved basis. **Specifically not allowed are overnight vehicles, trailers and/or pest control related vehicles.**

Article 7
Signage

. Tenant shall have the right to install signage and lettering on its own door to their Suite #1 and/or Suite #10 and or any signage on the front wall above the front door at tenant's cost subject to Landlord approval and in accordance with local signage codes and requirements. If any changes are needed in the future due to a change in the name or other details by Tenant, then all such changes shall be at the sole cost of Tenant.

Article 8
Assignment and Subletting

8.11 Assignment and Subletting. Tenant shall not be permitted to assign or sublet any portion of the Premises without Landlord's prior written consent, which shall not be unreasonably withheld or delayed, provided the use and financial condition of the assignee or subtenant is of a quality equal to or better than Tenant. In the event of an assignment of the Lease, or the sublease of the entire Premises for the remainder of the Lease Term, Landlord will have the right to terminate the Lease and to recapture the Premises.

8.12 Assumption of Liability. Tenant shall remain liable for all covenants, duties and obligations under this Lease notwithstanding any permitted assignment or subletting under Section 8.11

above. Tenant will cause any permitted assignee or subtenant to expressly assume in writing and agree to perform all the covenants, duties and obligations of Tenant under this Lease, and such assignee or subtenant shall be jointly and severally liable along with Tenant.

8.13 Assignment by Landlord. Landlord shall have the right to assign or transfer, in whole or in part, Landlord's rights and obligations under this Lease and in the Building and the Premises. Tenant shall recognize as its landlord any party to whom Landlord assigns this Lease.

Article 9 Ordinances and Statutes

At Tenant's sole cost, Tenant shall comply with all statutes, ordinances and requirements of all municipal, state and federal authorities pertaining to the Premises including, but not limited to, the Americans With Disabilities Act.

Article 10 Tenant Improvements; Maintenance, Repairs and Alterations

10.11 Tenant's Obligations. Tenant shall, at its own expense and at all times, maintain the Premises in good repair and safe condition, including but not limited to performing its obligations under Article 15 below, maintaining glass, service entry, and the utility mains within the Premises, and maintaining fire extinguishers, exit lights/life-safety items, and light bulb/ballasts replacements, and plumbing/electric repairs for any such items specific to the Premises. Tenant shall not use the Premises in any way that affects the structural integrity or mechanical systems of the Building. Tenant shall observe and keep all rules and regulations promulgated by Landlord from time to time for the safe, secure and efficient operation of the Building, the Building and the Premises and for the safety of all tenants, occupants and invitees thereof. Landlord's current rules and regulations are set forth in EXHIBIT A attached to this Lease, which Landlord shall have the right to amend from time to time.

10.12 Limits on Alterations. Tenant may not make any structural alterations to the Premises without the prior written consent of Landlord, which consent may be withheld in Landlord's sole discretion. Tenant may not make any nonstructural alterations to the Premises without the prior written consent of the Landlord, which consent may not be unreasonably withheld. All materials shall be of a quality comparable to or better than those in the Premises and installed in accordance with plans and specifications approved by Landlord. No alterations may be made that penetrate the roof of the Building or the floor of the Premises or in any way impair the safety of the Building.

10.13 Liens. Tenant shall pay all costs of alterations permitted under Section 10.12. Tenant shall keep the Premises and the Building free and clear of all mechanic's and materialman's liens resulting from construction done by or for Tenant. If any mechanic's or materialman's lien is ever claimed, fixed or asserted against the Premises or the Building in connection with any Tenant's Work, Tenant shall, within ten (10) days after receipt by Tenant of notice of such lien, discharge the lien either by payment or by posting a bond as permitted by law. If Tenant does not discharge the lien, whether valid or not, Landlord shall have the right, but not the obligation, to discharge the lien on Tenant's behalf, and Tenant shall promptly reimburse Landlord for all costs and expenses incurred by Landlord associated with the discharge of the lien, including without limitation reasonable attorneys' fees.

10.14 Tenant Improvements. Landlord shall, at Landlord's expense, provide the following improvements either prior to Lease Commencement or if not delivered by July 1, 2023 then the date of the Lease Commencement Date shall shift one day for each day delayed.

- Provide matching new carpet within the first-floor office, stairway to second floor and second floor open area.
- Paint all walls throughout space (both office and warehouse)
- Second floor office shall have the ceiling painted back to white eliminating the blue cloud-effect currently in place.
- Upon removing refrigeration unit there shall be a new wall separating the front office and warehouse to properly separate the front office and warehouse.
- Warehouse floor shall be painted OR provided some form of new seal that will eliminate the multi-color swirls on the floor for a new uniform look.
- All HVAC will be inspected and repaired or replaced as needed.
- Area in warehouse where there was signs of moisture will be properly treated and restored as needed.

Article 11 Entry and Inspection

Tenant shall permit Landlord or Landlord's agents to enter the Premises at reasonable times upon reasonable notice, except that no notice is necessary if Landlord must enter the Premises because of an emergency) for the purpose of inspecting the Premises, performing any services required of Landlord under this Lease and showing the Premises to potential and existing mortgagees and purchasers of the Building. Landlord shall use reasonable efforts to minimize any interference to Tenant's business as a result of any such entry.

Article 12 Indemnification

Tenant shall indemnify, defend (by counsel reasonably acceptable to Landlord), protect and hold Landlord harmless from and against any and all claims, demands, losses, damages, costs and expenses, including reasonable attorneys' fees ("Damages"), arising out of or relating to Tenant's default under this Lease or Tenant's use or occupancy of the Premises or caused by acts of Tenant or its agents, employees or invitees, except to the extent such Damages are caused by the willful misconduct of Landlord or its agents or employees. Landlord shall not be liable to Tenant for any damage caused by any act or negligence of any other tenant or occupant of the Building or by any owner or occupant of adjoining or contiguous property, nor shall Landlord be liable to Tenant other than for Landlord's gross negligence or willful misconduct.

Article 13 Tenant's Insurance

13.11 Types of Insurance. At all times during the Lease Term, Tenant shall, at its sole expense, maintain the following types of insurance coverage for the Premises, Common Areas, Building, and any incident arising out of or occurring in connection with Tenant's occupancy of the Premises:

(a) comprehensive commercial general liability insurance against any and all damages and liability arising from injuries to or death of any person or damage to property, however occasioned, in, on or about the Premises in amounts *not less than* \$1,000,000 for injury or death of one or more persons in a single accident and \$100,000 for damage to property;

(b) property insurance adequate in amount to cover damage to or replacement of, as necessary, the leasehold improvements, trade fixtures, furnishings, equipment, goods and inventory in the Premises;

(c) business interruption insurance in an amount equal to all fixed Rent payable under this Lease for a period of at least twelve (12) months commencing with the date of loss;

(d) employer's liability insurance and worker's compensation insurance providing benefits for all persons employed by Tenant in connection with the Premises to the extent required by applicable law;

(e) such other insurance in such amounts as may be reasonably required by Landlord from time to time.

(f) Plate glass insurance regardless of cause to Tenant's specific windows. At the option of Tenant, Tenant may opt to self-insure its own plate glass.

13.12 Form of Insurance and Selection of Insurers. All insurance shall be in a form satisfactory to Landlord and carried with companies reasonably acceptable to Landlord that are licensed or authorized to do business in the State of Florida. On commencement of this Lease, Tenant shall provide Landlord with a Certificate of Insurance, together with proof of payment of premium, showing Landlord, showing managing agent and, if requested by Landlord, Landlord's mortgagee as an additional insured. The Certificate must provide for a 30-day written notice to Landlord in the event of cancellation or material change of coverage. At least ten (10) days prior to the expiration of any coverage, Tenant shall give Landlord proof of renewals of or replacements for such insurance, together with proof of payment of premium. If Tenant does not procure any contract of insurance or any renewal or replacement required under this Article 13, Landlord may, but shall not be obligated to, procure such insurance on behalf of Tenant. The cost of the insurance shall be payable to Landlord as additional rent on written demand. Should Tenant fail to maintain insurance, notwithstanding Landlord's remedies under this paragraph or this Lease, Tenant shall be deemed to be self-insured.

13.13 Waiver of Subrogation. Landlord and Tenant release each other to the extent of any amount recovered by such party by reason of insurance required under this Lease, and each waives any right of subrogation in connection with such loss, cost, damage or expense. Such release of liability and waiver of the right of subrogation are not operative in any case where the effect is to invalidate insurance or increase the cost of insurance (*provided that* in the case of increased cost the other party shall, within 30 days following written notice, pay the increased cost and keep the release and waiver in full force and effect).

Article 14 Landlord's Insurance

Landlord shall maintain property and liability insurance policies on the Building in amounts Landlord chooses, but not less than commercially reasonable amounts. The cost of such insurance, including the cost of repairs paid by Landlord which are equal to or less than the amount of any deductibles, shall be included as a part of the Operating Expenses, and any insurance proceeds payable under such policies shall be paid solely to Landlord or its mortgagee[s].

Article 15

Utilities , Services and HVAC (Heating Ventilating & Air-Conditioning)

15.11 Utilities and Metering. Electrical and gas service as applicable to the Premises shall be separately metered with such meters to be placed in Tenant's name and paid for directly by Tenant directly to any given utility company. If Landlord elects to supply any utilities or services, to the Premises, then Tenant shall pay to Landlord the cost of its utility or service consumption and the cost of supplying separate metering devices if necessary, or, if not separately metered, the cost on a Pro-Rata basis, within thirty (30) days following receipt of each invoice from Landlord. Tenant shall indemnify and hold Landlord harmless from and against any and all liabilities and charges on account thereof. Telephone and internet service, including all installation, wiring, and monthly charges, shall be the sole responsibility of Tenant. In the event that any charge for any utility or service supplied to the Premises is not paid by Tenant to the supplier when due, then Landlord may, but shall not be required to, pay such charge for and on behalf of Tenant, with any such amount paid by Landlord being repaid by Tenant to Landlord as Additional Rent promptly upon demand. metered, the cost on a Pro-Rata basis, within 10 days following receipt of each invoice from Landlord.

15.12 Building Standard Services. Landlord shall not provide janitorial services for the Premises. Tenant shall receive no rent abatement if Landlord fails to furnish any of the listed services or utilities, and no such failure shall constitute an eviction. Landlord shall not be liable for loss of or injury to property in connection with Landlord's failure to furnish any of the listed services. Tenant shall be solely responsible for any services it requests that are beyond Building Standard.

15.13 Additional Tenant Responsibilities / HVAC Equipment / Overhead Door Tenant shall (a) pay for all replacement electrical light bulbs, tubes, ballasts and starters used and consumed in the Premises; (b) not use the Premises or Common Areas in a way that unreasonably increases the costs of services and utilities not separately metered to the Premises; (c) make reasonably safe use of all services and utilities; (d) be responsible for maintenance and repairs of any HVAC dedicated to the Tenant premises; and (e) be responsible for maintenance and repairs of the overhead door dedicated to Tenant premises. In the event the HVAC is where such cost to repair is over 50% of the replacement cost then such replacement shall be arranged for and paid for by the Landlord (unless such replacement is caused due to negligence by the Tenant or its vendors or guests in the event an overhead door is damaged by a vehicle in particular). All HVAC shall be serviced by Tenant and done at a minimum of a semi-annual basis. If such maintenance is not maintained, then any replacement shall become the responsibility of Tenant due to neglect of maintenance by Tenant.

Article 16

Condemnation

If all or more than 50% of the Premises is taken for public use, either party may elect to terminate this Lease as of the date of taking. If less than 50% of the Premises is taken and a part remains that is reasonably suitable for Tenant's use, this Lease shall, as to the part taken, terminate as of the date of taking, and Tenant shall then pay such proportion of the rent for the remaining term as the value of the Premises remaining bears to the total value of the Premises at the date of the taking. Any election to terminate this Lease as provided above must be exercised, if at all, within 60 days after the nature and extent of the taking is determined or this Lease shall remain in full force and effect. Tenant shall not share in the award that may be payable to Landlord for any taking; Tenant may, however, seek a separate award for its trade fixtures and moving expenses.

Article 17
Destruction of Premises

17.11 Substantial Destruction. If the Premises are made substantially untenable by fire or other casualty not due to the act or neglect of Tenant or its employees, agents or servants, Landlord may elect to:

(a) terminate this Lease as of the date of the fire or other casualty by giving notice of termination to Tenant within 45 days after the date of the fire or other casualty: or

(b) without terminating this Lease, proceed with reasonable diligence to repair or restore the Premises, other than leasehold improvements paid for by Tenant, at Landlord's expense but not to exceed the amount of insurance proceeds received by Landlord.

If Landlord elects to repair or restore the Premises, it shall provide Tenant, within 45 days after the date of the fire or other casualty, with an estimate of the completion date of the repair or restoration. If Landlord's estimate shows that the appropriate repairs or restoration cannot be completed within 180 days after the date of the fire or other casualty, then Tenant may, by giving written notice within ten days after receipt of Landlord's estimate, terminate the Lease. If such repair or restoration is begun by Landlord but is not completed by the expiration of the 180-day period, which period shall be extended by any delays caused by the insurance process, by Tenant or by other events beyond Landlord's reasonable control, then Tenant may, upon ten days written notice to Landlord, terminate this Lease. If this Lease is not terminated, rent shall abate for all or that part of the Premises that are rendered untenable on a per diem basis from and after the date of the fire or other casualty until the Premises are substantially repaired or restored.

17.12 Partial Destruction. If the Premises are damaged by fire or other casualty not due to the act or neglect of Tenant or its employees, agents or servants, but are not made substantially untenable, then Landlord shall with reasonable diligence repair and restore the Premises, as applicable, other than leasehold improvements paid for by Tenant. If, however, such damage occurs during the last 12 months of the Lease Term, either party may terminate this Lease as of the date of the fire or other casualty by delivering written notice of termination to the other party within 30 days after the date of such fire or other casualty.

17.13 Act or Neglect of Tenant. If the Building or the Premises are damaged by fire or other casualty due to the willful act or gross negligence of Tenant, Tenant shall, at its own expense (to the extent not covered by insurance required under this Lease), cause the Building or the Premises to be repaired or restored.

Article 18
Hazardous Substances

Tenant shall not cause or allow any Hazardous Substance (as defined below) to be brought in, kept or used in or about the Building by Tenant or its agents, employees, contractors or invitees, other than standard cleaning materials. Tenant shall indemnify, defend (by counsel reasonably acceptable to Landlord) and hold Landlord harmless from and against any and all claims, damages, fines, judgments, penalties, costs, liabilities or losses (including without limitation any and all sums paid for settlement of claims, reasonable attorneys' fees, consultant fees and expert fees) arising as a result of Tenant's violation of the obligations set forth in the preceding sentence. This indemnification shall survive the termination of this Lease, and includes, without limitation, any and all costs incurred because of any investigation of the site, or any cleanup, removal or restoration mandated by federal, state or local agency or political subdivision. For purposes of this Article 18, "Environmental Law" means any federal, state or local law, statute, ordinance or regulation pertaining to health, industrial hygiene or the environment, including

without limitation the Comprehensive Environmental Response, Compensation and Liability Act of 1980 and the Resource Conservation and Recovery Act of 1976. "Hazardous Substance" means any substance, material or waste which is or becomes designated, classified or regulated as being "toxic" or "hazardous" or a "pollutant" or which is or becomes similarly designated, classified or regulated under any Environmental Law, including asbestos, petroleum and petroleum products.

Article 19
Events of Default

Each of the following is an event of default ("Event of Default") under this Lease:

- (a) if Tenant abandons or vacates the Premises;
- (b) if Tenant does not pay any monthly Base Rent when due, and such failure to pay continues for five days after written notice;
- (c) if Tenant does not pay any sum or charge payable by Tenant under this Lease, other than Base Rent when due and such failure to pay continues for five days after written notice;
- (d) if Tenant does not perform or observe any agreement, covenant, condition or provision of this Lease other than the payment of money and such failure continues for 30 days after written notice;
- (e) if Tenant (i) files or consents to the filing against it of a petition for relief or reorganization or any other petition in bankruptcy or liquidation; or (ii) makes an assignment for the benefit of its creditors; or (iii) consents to the appointment of a custodian, receiver, trustee or other officer with similar powers for all or a substantial part of its property;
- (f) if a petition is filed against Tenant without Tenant's consent for (i) the appointment of a custodian, receiver, trustee or other officer with similar powers for all or a substantial part of Tenant's property; (ii) relief or reorganization or any other petition in bankruptcy or insolvency; (iii) the dissolution, winding up or liquidation of Tenant, if any such petition is not dismissed within 60 days;
- (g) if this Lease or Tenant's interest in this Lease is levied upon under any attachment or execution and the attachment or execution is not vacated within 60 days; or
- (h) if Tenant assigns this Lease or subleases all or any portion of the Premises in violation of Article 8 above.

Article 20
Landlord's Remedies on Default.

If an Event of Default occurs, Landlord may, at its option, terminate this Lease and repossess the Premises pursuant to state law, without demand or notice of any kind to Tenant, and recover from Tenant as damages:

- (a) the unpaid rent and other amounts due at the time of such termination *plus* interest on such amounts at the rate set forth in Section 2.12 above from the due date until paid; *plus*
- (b) the present value of the rent payable under the Lease for the remainder of the Lease Term after the termination *less* the present value of the fair rental value of the Premises, for that period (both

determined by applying a discount rate *equal to* the prime rate then published in *The Wall Street Journal*); *plus*

(c) any other amount necessary to compensate Landlord for damages caused by Tenant's failure to perform its obligations under this Lease, including without limitation the cost of recovering the Premises.

In the alternative, Landlord may terminate Tenant's right of possession (but not this Lease) and repossess the Premises pursuant to state law, without demand or notice of any kind to Tenant. In that event, Landlord may relet the Premises for the rent and upon such terms as shall be satisfactory to Landlord. For the purpose of such reletting Landlord is authorized by Tenant to decorate or to make any repairs, changes, alterations or additions in or to the Premises that may be necessary or convenient. Tenant shall pay all reasonable costs of re-letting, including without limitation, brokerage commissions and reasonable attorneys' fees, and shall be liable for any deficiency in rent below the total rental and all other payments required under this Lease for the unexpired balance of the Lease Term. In addition, Landlord may exercise any and all other rights and remedies available to Landlord at law or in equity. In exercising any of its rights and remedies under this Article 20, Landlord shall use reasonable efforts to mitigate damages.

Article 21 Lease Securitization

21.11 Security Deposit. The Security Deposit set forth in Article 1 secures Tenant's performance of its obligations under this Lease, including without limitation its obligations to pay Base Rent, Operating Expenses Rent and Real Estate Taxes Rent. Landlord may apply all or portions of the Security Deposit if Tenant does not perform all of its obligations, and Tenant shall replace the amount so applied within ten days after demand from Landlord. Tenant expressly acknowledges that Tenant may not apply all or any portion of the Security deposit to the payment of rent under this lease, and if it attempts to do so, late charges and penalties shall accrue until rent is paid in full without regard to the Security Deposit. If Tenant is not in default, any balance of the Security Deposit remaining at the expiration of the Lease Term shall be returned within thirty (30) days to Tenant, without interest. If the Building is sold, Landlord may transfer the Security Deposit to the purchaser. Upon a transfer, Landlord shall have no further liability with respect to the Security Deposit, and Tenant shall look solely to the purchaser for the return of the Security Deposit. Landlord need not keep the Security Deposit in a segregated account, and the Security Deposit may be commingled with other funds of Landlord.

Article 22 Limitation on Landlord's Personal Liability

Tenant shall look solely to Landlord's interest in the Building for the recovery of any judgment from Landlord, it being agreed that neither Landlord nor any of its officers, shareholders, directors, partners or employees shall be personally liable for any such judgment in favor of Tenant.

Article 23 Attorneys' Fees

If either party to this Lease institutes any suit against the other party to enforce this Lease, the prevailing party shall be entitled to all of its costs, expenses and reasonable attorneys' fees in connection with the suit.

Article 24
Waiver

No failure of Landlord to enforce any term of this Lease shall be deemed to be a waiver of such term.

Article 25
Severability

If any clause or provision of this Lease is illegal, invalid or unenforceable under present or future laws, then it is the intention of the parties that the remaining provisions of this Lease shall continue in full force and effect.

Article 26
Notices

Except as specifically provided to the contrary in this Lease, all notices under this Lease to be enforceable at law or in equity must be in writing, and shall be deemed given (a) when personally delivered (including by means of professional messenger service), (b) one business day after being sent by overnight courier, with request for next business day delivery, or (c) two business days after being sent by registered or certified mail, postage prepaid, return receipt requested, to the address set forth in Article 1 with respect to Tenant (address per Section 1.10), and to ForeFront Collier Venture LLC, c/o Forefront Properties, LLC, 1s450 Summit Ave., #150, Oakbrook Terrace, IL 60181, with respect to Landlord.

Article 27
Surrender of Premises

On the last day of the Lease Term or on any earlier termination, Tenant shall surrender the Premises to Landlord in the same condition as when received, ordinary wear and tear and damage by fire or other casualty excepted, free and clear of debris. When the Lease terminates, Landlord shall advise Tenant whether Landlord shall require Tenant to remove any or all tenant improvements made to the Premises during the Lease Term. Any improvements that Landlord does not require to be removed shall belong to Landlord without compensation, allowance or credit to Tenant, except movable trade fixtures, furnishings and equipment of Tenant that can be removed without defacing the Premises or the Building. Tenant shall repair any damage to the Premises occasioned by the installation or removal of Tenant's trade fixtures, furnishings and equipment.

Article 28
Holding Over

Any holding over after the expiration or termination of this Lease shall be construed as a tenancy at sufferance at a rental of 150% of the rent payable in the month immediately preceding the month in which the expiration or termination occurred, and otherwise in accordance with the terms of this Lease. If Tenant becomes a holdover tenant, Tenant shall also indemnify Landlord against all claims as a result of Tenant's possession of the Premises, including without limitation claims for damages by any tenant to whom Landlord may have leased some or all of the Premises, for a term commencing after the expiration or termination of this Lease.

Article 29
Time

Time is of the essence of this Lease.

Article 30
Successors and Assigns

This Lease is binding on and inures to the benefit of Landlord and Tenant and their respective successors and assigns, so long as, with respect to Tenant, its assigns are approved by Landlord pursuant to this Lease.

Article 31
Subordination

This Lease is subordinate to the lien of any mortgages which are now or at any future time are placed on the Building, the Premises or Landlord's rights under this Lease, and to any renewals, extensions, modifications or consolidations of any mortgage. This clause is self-operative, and any mortgagee need require no further instrument of subordination. To confirm subordination, however, Tenant shall execute promptly any appropriate certificate or instrument that Landlord reasonably requests.

Article 32
Estoppel Certificate; Financial Statements

32.11 Certificates. Tenant shall, within ten days' after receiving a written request from Landlord, execute, acknowledge and deliver to Landlord a statement in writing: (a) certifying that this Lease is unmodified and in full force and effect (or, if modified, stating the nature of the modification and certifying that this Lease, as so modified, is in full force and effect), the amount of any security deposit, and the date to which the rent and other charges are paid in advance, if any; (b) acknowledging that there are not, to Tenant's knowledge, any uncured defaults on the part of Landlord hereunder, or specifying defaults if any are claimed; and, if part of the certification (c) confirmation of subordination as outlined in Article 31 above. All prospective purchasers or mortgagees of the Building may conclusively rely on the statement. Tenant's failure to deliver the statement shall be conclusive on Tenant that this Lease is in full force and effect, without modification except as may be represented by Landlord, that there are no uncured defaults of Landlord, that not more than one month's rent has been paid in advance, and that subordination of this Lease is confirmed. If Tenant does not respond to Landlord's request in a timely manner, Landlord may complete such a statement and sign it on behalf of Tenant, and Tenant acknowledges that Landlord and third parties may rely on such a statement.

32.12 Financial Statements. ~~If at any time Landlord desires to finance, refinance or sell all or a portion of the Building, Tenant shall deliver to Landlord and any lender or purchaser designated by Landlord current financial statements of Tenant as may be reasonably required by the lender or purchaser. The financial statements shall be received by Landlord and the lender or purchaser in confidence and shall be used only for the purposes described in this Section 32.12.~~

Article 33
Authorization

If Tenant executes this Lease as a corporation, limited liability company or partnership, then Tenant and the person(s) executing this Lease on behalf of Tenant represent and warrant that the entity is duly

qualified to do business in the State of Florida and that the individuals executing this Lease on Tenant's behalf are duly authorized to execute and deliver this Lease on Tenant's behalf. If this representation and warranty is untrue, then the person signing this Lease agrees to be personally liable for the performance of tenant's obligations.

Article 34
Joint and Several Liability

In the event that more than one person or entity executes the Lease as Tenant, they all are jointly and severally liable for all of Tenant's obligations hereunder.

Article 35
Governing Law

The laws of the State of Florida govern this Lease.

Article 36
Jury Waiver

Landlord and Tenant hereby knowingly and intentionally waive the right to trial by jury in any action or proceeding that Landlord or Tenant may institute against each other with respect to any matter arising out of or related to this Lease or the Premises.

Article 37
Covenant of Quiet Enjoyment

So long as Tenant is not in default under this Lease beyond any cure period, Tenant's peaceful and quiet possession of the Premises during the Lease Term shall not be disturbed by Landlord or by anyone claiming by, through or under Landlord.

Article 38
Real Estate Broker Disclosure

Tenant represents that the Tenant has dealt with Lee & Associates as the only broker in connection with this Lease and that insofar as the Tenant knows, no other broker negotiated this Lease or is entitled to any commission in connection therewith. Tenant agrees to indemnify, defend and hold Landlord and its beneficiaries, employees, agents, their officers and partners, harmless from and against any claims made by any other broker or finder for a commission or fee in connection with this Lease, *provided that* Landlord has not in fact retained such broker or finder. Landlord shall pay the broker(s) noted above per a separate commission brokerage agreement.

Article 39
Third Party Disclosure

The terms and conditions of the Lease are strictly confidential and may not be disclosed by Tenant to third parties without the prior written consent of Landlord, except as required by judicial process.

Entire Agreement

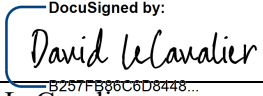
This Lease, including all attached Schedules and Exhibits, is the entire agreement between the parties and may be modified only by a writing signed by both parties.

[Signatures begin on next page]

IN WITNESS WHEREOF, Landlord and Tenant have signed this Office / Warehouse Space Lease as of the day and year first above written.

LANDLORD:

ForeFront Collier Venture LLC, a Florida limited liability company

By:  _____
Name: David LeCavalier
Its: Managing Member

TENANT:

Clements Pest Control Southwest, LLC

By:  _____
Name: Christopher Slade
Its: CS

EXHIBIT A

RULES AND REGULATIONS

1. In the event of any conflict between the terms of these rules and regulations and the express provisions of the Lease, the Lease shall control. Landlord reserves the right to rescind, add to and amend any rules or regulations, to add new reasonable rules or regulations and to waive any rules or regulations with respect to any tenant or tenants. Tenant shall make available a copy of these rules and regulations to each of its employees to facilitate compliance with these standards.

2. The sidewalks, walks, plaza entries, corridors, ramps and staircases of the Building shall not be obstructed, and shall not be used by Tenant, or the employees, agents, servants, visitors or invitees of Tenant, for any purpose other than ingress and egress to and from the Premises. No skateboards, roller skates, roller blades or similar items shall be used in or about the Building.

3. Tenant, or the employees, agents, servants, visitors or invitees of Tenant, shall not at any time place, leave or discard any rubbish, paper, articles or object of any kind whatsoever outside the doors of the Premises.

4. Tenant shall not place, or cause or allow to be placed, any sign, placard, picture, advertisement, notice or lettering whatsoever, in, about or on the exterior of the Premises, Building or Building except in and at such places as may be designated by Landlord and consented to by Landlord in writing. Any such sign, placard, advertisement, picture, notice or lettering so placed without such consent Landlord may remove without notice to and at the expense of Tenant. All lettering and graphics on corridor doors shall conform to the building standard prescribed by Landlord.

5. Tenant shall not place, or cause or allow to be placed, any satellite dish, communications equipment, computer or microwave receiving equipment, antennae or other similar equipment about or on the exterior of the Premises, Building or Building without Landlord's consent, which consent may be withheld in Landlord's sole discretion. Landlord may remove any such equipment so placed without notice to and at the expense of Tenant.

6. Tenant shall not bring or permit to be brought or kept in or on the Premises or Building any flammable, combustible, corrosive, caustic, poisonous, or explosive substance, or firearms, or cause or permit any odors to permeate in or emanate from the Premises, or permit or suffer the Building to be occupied or used in a manner offensive or objectionable to Landlord or other occupants of the Building by reason of light, radiation, magnetism, noise, odors and/or vibrations.

7. Tenant shall not mark, paint, drill into, or in any way deface any part of the Building or the Premises. No boring, driving of nails or screws, cutting or stringing of wires shall be permitted, other than for hanging standard-weight decorative pictures, paintings or other artwork, except with the prior written consent of Landlord which consent shall not be unreasonably withheld or delayed. Tenant shall not install any resilient tile or similar floor covering in the Premises except with the prior approval of Landlord, which approval shall not be unreasonably withheld or delayed.

8. No animals or birds shall be brought or kept in or about the Building, with the exception of guide dogs accompanying visually handicapped persons.

9. No awnings, draperies, shutters or other interior or exterior window coverings that are visible from the exterior of the Building or from the exterior of the Premises within the Building may be

installed by Tenant without Landlord's prior written consent, which consent shall not be unreasonably withheld; *provided that* it shall not be unreasonable for Landlord to withhold its consent if Landlord requires uniform window treatments on all windows in the Building.

10. Tenant shall not place, install or operate within the Premises or any other part of the Building any engine, stove, or machinery, or conduct mechanical operations therein, without the written consent of Landlord.

11. No portion of the Premises or any other part of the Building shall at any time be used or occupied as sleeping or lodging quarters.

12. Tenant shall at all times keep the Premises neat and orderly.

13. The toilet rooms, urinals, wash bowls and other apparatus shall not be used for any purpose other than that for which they were constructed and no foreign substance of any kind whatsoever shall be thrown therein. The expenses of any breakage, stoppage or damage, resulting from the violation of this rule shall be borne by the Tenant who (or whose employees or invitees) shall have caused such damage.

14. All tenant modifications resulting from alterations or physical additions in or to the Premises must conform to all applicable building and fire codes. Tenant shall obtain written approval from the management office prior to commencement of any such modifications and shall deliver as built plans to the management office upon completion.

15. The Parking Lot shall not be utilized for overnight storage or materials, trailers, bins, or vehicles of any sort without prior consent by Landlord. If overnight vehicles are approved and arranged it shall be with the coordination of the building's Property Management for protocol to follow.

16. There shall be a common dumpster within the parking lot for tenant normal office trash generation. Any excessive trash beyond normal office generated trash or if tenant has a storage, manufacturing, or use within a warehouse area then such tenant shall independently contract a separate dumpster. Such dumpster shall be kept at a pre-approved location within the parking lot at the sole cost of tenant. Landlord shall not be responsible for policing such use of the excess dumpster by others or public drive-by dumping rather it shall be the responsibility and liability of any given tenant who contracts for this dumpster to monitor or place a camera on their own dumpster. Such dumpster shall not be permitted to be stored indoors.

17. Each tenant is responsible for their own unit's interior cleaning and interior window washing.

18. Each tenant is responsible for the installation and annual certification of fire extinguishers as required by local fire code.

19. NO SMOKING INSIDE BUILDING – ALL OFFICES AND STORAGE SPACES ARE SMOKE FREE.

20. Garage Doors facing Collier Center Way must remain closed except for sole purpose of shipping and receiving only and should not be left open for longer than the minimum required time not to exceed one (1) hour. This is to keep the architectural elevation / integrity of the property as a whole.

21. No indoor vehicles are permitted to have their engines running except for vehicle ingress and egress purposes only.